

ABORIGINAL AND TREATY RIGHTS

Final Project: Poetry

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for
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PUBLIC EDUCATION

I think Ardith is right about the need for public education about the treaties. I've studied Aboriginal issues and law for some years. However, before taking this course, I never understood myself as a party to the treaties and as having individual responsibility to ensure they are respected. Although I totally agree that there is a need for public education, and I am glad it seems to be happening at some level in public elementary schools, I think with adults it is a tricky proposition. ~~Two~~ of these poems were inspired by recent conversations I've had with Canadians.

I am a Treaty Canadian

Oh Canada
Our home on native land!
True blinding love the deed is in my hands.

With opened eyes I see thee writhe,
Is it pain or ecstasy?

Justice must be done,
Oh Canada, we choose who we will be.

God hold our land to the spirit of the treaties!
Honourable Crown, I stand on guard for thee.

Oh honoured Crown, I stand on guard for thee.

COVENANT CHAIN DREAM

Reach
 back in time
Under
 racist grime
Link
 with my mind
Chain
 tarnished shine
Scrub
 polish rub
Scour
 burnish buff
Rust
 still remains
Change
 dreamscape scene
Pull
 chain opens
Hatch
 to escape

Light
Streaming
In

Value
 of the chain
More
 than the silver
Worth
 in the idea
Honour
 in the method
Open
 we shall our
Hearts
 to you and your
Hearts
 unbosum now
To
 lay them open
unite
 one body
Now
 as one soul

Nation
 to Nation
Strong
 forget not
What
 held you safe
Welcome
 on these shores

Bright
 let friendship shine
Will
 light into the
Chain
 waking day
Renew
 through the years
Bright
 to penetrate
Space
 the dullest brick
Between
 politicians ears

ASAAM

At a mutual friend's for dinner
Smatterings of Hinglish
Smell of chicken biryani .
"what kind of law do you study?" he asks
"Natural resource and aboriginal" I reply.
As the conversation builds
In my brain Ardiths words are
Echoing.
'Canadians don't understand.
They are party to the treaties too.
There is a need for Public Education'.

The man's name is Asaam.
He works in construction management.
On a recent contract in traditional territory,
he was bound to hire native workers.
He objects.
'These guys do not want to work
not for \$18 an hour.
We hire one day they quit the next.
One guy he did work well, very hard,
no matter what the weather, for four months.

Then fight with the supervisor. Leaves.
Does not come back
He falls back into that alcohol and this drug use.
One girl, she worked hard. She is still with us.
That is all.'

I do my best
Aboriginal and treaty rights rundown.
'They could have kicked all us immigrants out
In the beginning
They chose to share instead.
Treaties of peace and friendship
frameworks for sharing the land
were violated.
Land was stolen.
Economic systems displaced
Racist policies kept native people out of the new economy.
Cultures were attacked, almost destroyed.
The fallout of all this is still with us.
Now there must be some redress, compensation
Some semblance of justice.

Hiring facilitates participation in and benefit from the
development of traditional territories.

It's the least we - Canadian society- can do.

He challenges this.

'There is fault on both sides. These bands -

Musqueam, Tsawwassen - are they not wealthy?

Have they not had opportunity to become educated?

Do they not own valuable lands?'

His frustration is evident.

'We are all here now.

There was fault on both sides and

we are all here now.'

This Canadian man's name is Asaam.

He emigrated here in this century from Pakistan.

Pakistan. Invaded colonized

by Aryans Persians Greeks Arabs Turks

The British in their turn.

60 years ago millions of people fled their homes there,

while millions of others escaped to those homes

All desperate to avoid the sectarian violence

of the post-colonial partition .

Pakistan

Unspeakable horrors have happened during his lifetime

where blood still flows over disputed territory.

And I falter in my public education mission.

Not sure how to continue over dinner

This conversation needing years.

RAY

I share with my lover how I feel
Reading some of this course material
This is not a history to be proud of.

You hang your head about a lot of things
He says
It was over a hundred years ago
Everyone should just get over it.
I pay my taxes
I don't believe in all that complainin'.

But hey
Nipawin Saskatchewan
Half-breed boy
No community no land shreds of culture
Your anger scares me.

If I reflect on your past
The differences between your life and mine
It is impossible to 'get over it'
Unthinkable to pretend to forget
Absurd to act like it is finished

When history is a continuing story
Manifest in us.

IRONIC

It strikes me as incredibly ironic that many people come to Canada from around the world seeking freedom and dignity, only to participate (either unknowingly or wilfully blindly) in perpetuating patterns of oppression on this soil.

Ironie: think Alanis Morissette
(track 10 jagged little pill)

It's like ra-a-in
on your wedding day
It's the free ri-i-de
You're still trying not to pay
The lesson you can't le-e-earn
Though it stares you right in your face

And of course they fought. . .
It figures

Triloets for the Red River valley

1.

The dispossessed they dispossessed
On their quest for freedom in the West
No more to live in servitude
The dispossessed, they dispossessed
the Metis Nation in the West
The highlands fenced off, people displaced by sheep
Leaving Stromness how the women did weep
The dispossessed they dispossessed
On their quest for new homes in the West.

2.

Their fields will scare the buffalo
This is our homeland they cannot stay
We need pemmican it cannot go to them first
Their fields will scare the buffalo
To the HBC Transfer, National Committee says no
Their new home does not lie in the Metis birthplace.
Their fields will scare the buffalo
This is our homeland they cannot stay.

3.

They knew they were not welcome
Knew there would be trouble if they came
Determined, desperate. Reign of terror following.
They knew they were not welcome.
Did they think they had the right to steal another's
home?
Or were they simply pawns in the fur companies' game?
They knew they were not welcome
They brought much trouble when they came.

4.

Did any Highlander think, did any of them see
What evil had been done to them they now gave the
Metis?
Labelling 'savages' justified much - first for the English
then for the Scots
Did any Highlander think, did any of them see
Surely this is one of history's great ironies
No respect for land rights, culture, language, laws
Did any of them think, did any Highlander see
The same evil that was given them they now gave the
Metis

ECONOMIC

And virgin places don't mean a thing
to people who never bring their hearts along
And fools like them never fall at all
They're tough as sin, let nobody in
They turn and spin your wheels and nobody wins

Buffy Sainte-Marie
From "Disinformation" (track 7)
"Coincidence and Likely Stories"
Chrysalis Music Ltd.
1992

Taken up

"And Her Majesty the Queen hereby agrees with the said Indians that they shall have the right to pursue their usual vocations of hunting, trapping and fishing throughout the tract surrendered. . . saving and excepting such tracts as may be required or taken up from time to time for settlement, mining, lumbering, trading, or other purposes."

Taken up

Cash raked up
until there's no choice left

Chop it down

Dig further down
until there's no choice left

Colonize

economize
until there's no choice left

Corporate greed
ruins with speed
food water medicine air

Fur and food?
It's over dude!
Instead take profit-share

Live on the land?
Quit dreaming man!
Time to time's fragmented that

Work for us
Buy from us
You take a cut of the fat

There's only room
For one way
To earn a living now

Make a deal
You have to now
You know there's no choice left

Swiss Cheese Logic

Supreme Court judges

Talk from both sides of their faces

Causing inconvenience with their

Pen-and-Ink work cases

You have a title of a sort and rights to the land

But no incompatible uses allowed by your own hand

Non-natives can dig, but no strip mines for you

And your consent is not required, sorry 'bout that Taku

We don't like running roughshod

Its just not to our taste

But to leave the resources sitting there

Is simply a terrible waste

So if they ask you pretty please

You'd best be nicey-nice

No thwarting or frustrating

You should accept the going price

You have rights of course you do

Just as long as we define 'em

Surely you can't argue with
Justifiable infringement

And you can trust that gal 'the Crown'

She's got your best interests in mind

Heed you now to my wise words

And an easier path you'll find:

"It is always assumed
that the Crown intends to
Fulfill Its Promises."

Sorry. . . what? Did I misunderstand?

When I blinked did she reverse

years of treachery on this land?

Sorry. . . please, could you repeat?

Your logic's stifled by that cursed

Swiss cheese stuck in your teeth.

CAVEAT:

I know Haida and Delgamuukw were big victories and advances. I know my logic and legal analysis falls far short of the level of a SCC judge. I know this is irreverent and cheeky and I have possibly misconstrued some points. I claim artistic license.

Standing on the Road

In 1993 I stood on the road
In Clayoquot Sound where the giant trees grow*

Chanting for the trees
The bugs, beasts, and please
MacBlo - won't you just leave them alone

My favourite song was a little bit long
This is how part of it goes:

'When I was younger
The government told me
That it was wrong to be strong
Wrong to be strong
But now I'm older
And I tell them
I've been givin' away my power for too long
I'm takin' it back
I'm takin' it back
Takin' it back back back because it's mine.'

Now 160 000 cubic metres will go
But it won't be cut by big bad MacBlo

Ma-Mook Natural Resources
First Nations owned
Took up the tenures when corporate loggers had flown

Never would I stand on that road now
And chant my favourite verse
Any power to be taken back
Belongs to those Nations first

And I know it's not my place
I bear the shames of my race
And I understand the whys
But I can't stop my crying eyes

My heart prays for the trees
The bugs, beasts, and please
Ma-mook - I hope much wisdom is shown.

* in the early '90's over 800 people were arrested blockading a logging road in an effort to protect the ecosystems of this amazing place.

DISINFORMATION

Coincidence and likely stories
they dog your trail like a pack of lies
They whine at night when the lights are out
You toss and turn
You pitch and roll
Disinformation, you spin it like a silkworm

Buffy Sainte-Marie
From "Disinformation" (track 7)
"Coincidence and Likely Stories"
Chrysalis Music Ltd.
1992

Tenka: Lies for Canada

Settlers so good at
Convenient constructions
Of reality
Talent for self-deception
Human nature? Cultural?

Treaty 8 Haiku

Rivers run poisoned
Prairie grasslands almost gone
Sun shines melts brings death

Honour: Angry

The honour of the Crown
Has been flushed on down
The loo so many times its hard to see

That we'll ever fish it out
Of the lagoon of lies I really doubt
And if we did what could ever make it clean?

Honour: Answer

Honour is a quality
It can grow brand new
The most tarnished reputation fades with time

If we try real hard
And deal real soft
The results will maybe someday be sublime.

Senryu Sequence: Trick or Treaty?

Extinguishment not
A cross-cultural concept
Neither is sharing

No one could foresee
What development would mean
No consent for this

Did not know, sign for
Oppressive Indian Act
Cultural slaughter

With spoken words you
Never claimed your Sovereignty
You were not so bold!

Embrace the spirit
Time to honour promises
Make true spoken words.

Honour Defined

Pontification on and on
About the honour of the Crown
Turn the meaning of the word
inside out and upside down

Maybe judges are hoping dear
To goad the Crown into coming clean
But they really have not been very clear
Oh what in the sam hill they mean.

Now to be sure they've given some thought
To a few things that honour is not**
but in the 18 dictionary entries for the word
There's a wide scope, leaders are reassured

So I present some possible glosses
Each one an educated guess
Aided and abetted by
Oxford University Press.*

1. In developing vast tracts of land, government is
expected to consider the economic well being of all

Canadians. . . Aboriginal peoples' legal right to occupy
and possess certain lands mandates basic fairness
commensurate with the honour and good faith of the
Crown. (Delgamuukw at 211.)

The controlling question in all situations is what is
required to maintain the honour of the Crown. . . (Haïda,
at para. 45)

Honour: Adherence to a conventional standard of
conduct.

This does not comfort me.

2. The Crown's duty of honourable dealing toward
Aboriginal peoples, which arises in turn from the Crown's
assertion of sovereignty over an Aboriginal people and
de facto control of land and resources that were formerly
in the control of that people. (Haïda at para. 32)

Honour: Magnanimity (honour among thieves).

3. It is a corollary of s. 35 that the Crown act
honourably in defining the rights it guarantees. (Haïda
at para. 20)

Honour: Golf the right of driving off first as having
won the last hole.

4. The historical roots of the principle of the honour of the Crown suggest that it must be understood generously.

(*Haïda* at 17)

Honour: *archaic chastity, the reputation for this.*

Early Crown representatives as sexual freedom fighters??

5. The honour of the Crown gives rise to different duties in different circumstances. (*Haïda* at 18)

The wheels of justice are slowly turning. Many circumstances have changed since contact and the beginning of colonization. The Crown has multiple opportunities still in which to redeem its reputation.

Most hopeful interpretations of honour are:

Honour: Adherence to what is right; high respect; sincerity (on my honour); to accept or pay a bill when due.

* Canadian Oxford Dictionary, 2^d ed. (Ontario: Oxford University Press, 2004) at 729.

** No cavalierly running roughshod; depriving Aboriginal claimants of some or all of the benefit of an exploited resource; limiting reconciliation to the post-proof (of claim/title) sphere when land and resources may be changed and denuded; sharp dealing (*Haïda* at paras. 27, 33, 42); relying on the defence that lands have been abandoned (*Delgamuukw* at 29).